

How to Respond to a Demand to Disclose

Instructions

A **Response to Demand to Disclose (Form F11.02B)** is a form that you can use to respond to the other person's Demand to Disclose (Form F11.02A).

You have only **30 days** (from the date you received the Demand to Disclose) to provide the other person and the Court with the documents and information along with the Response to a Demand to Disclose form.

If you do not respond, the Court may proceed and make an order without hearing from you.

Completing Your Response to Demand to Disclose

You can fill out this form by hand or you can download and fill out this form electronically at <https://www.court.nl.ca/supreme/rules-practice-notes-and-forms/family/general/> (If you fill out the form electronically, you must still print the form, file it with the Court, and serve a copy on the other person).

List the documents that you are attaching and the documents that you are not attaching.

If you cannot provide the requested documents or information for any reason, you may be able to give authorization to a person or institution (eg. your employer) to provide the information. Otherwise, you must explain why you cannot provide the documents.

If you object to providing any or all of the documents requested, you must write this in your Response to Demand to Disclose and provide reasons.

Filing Your Response to Demand to Disclose

You must make **3 extra copies** of your completed and signed Response to Demand to Disclosure.

To file the Response to Demand to Disclose, you must bring the original Response to Demand to Disclose to the Supreme Court location where your file is or you can mail it to that location. You must file your Response to Demand to Disclose with the Court **within 30 days** from the date you were served.

Serving Your Response to Demand to Disclose

You may serve your Response to Demand to Disclose with your Originating Application, Originating Application for Variation, Response, or Reply. If you are serving just the Demand to Disclose alone, you can serve the other person by: personal service (an adult, who is not you, can hand-deliver the document), leaving a copy with the other person's lawyer, leaving a copy at the other person's address, registered mail/courier, or regular mail. You may also serve the other person using fax, email, or electronic document exchange, if the other person has provided that information.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Grand Falls-Windsor: (709) 292-4260

Gander: (709) 256-1115

Happy Valley-Goose Bay: (709) 896-7892

Grand Bank: (709) 832-1720

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE SERVING THE RESPONSE ---

Form F11.02B: Response to Demand to Disclose (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ APPLICANT
(Print full name)

AND: _____ RESPONDENT
(Print full name)

AND: _____
(Print full name)

☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT

In response to the Demand to Disclose served by, _____,
(Print the other party's name)

dated _____, I am the ☐ Applicant ☐ Respondent ☐ Other:
(Date: month/day/year)

in the within matter .

I have provided the following requested documents and information to all parties:
(List the documents below)

I object to attaching the following requested documents and information for the reasons set out below:

(List the documents below and provide reasons for your objection)

Statement of Truth

You must swear or affirm that the facts and information that you have written in this Response to Demand to Disclose is the truth. You must swear or affirm and sign this Statement of Truth in front of a commissioner of oaths, notary public, justice of the peace, or lawyer. Court Registry staff are commissioners of oaths and you may sign this Response at the Court when you file it.

I declare the facts and information of this Response to Demand to Disclose are true to the best of my knowledge and belief.

SWORN TO or AFFIRMED at _____, this _____ day of _____, 20____.

Signature

Signature of Person Authorized to Administer Oaths